

SUPREME COURT OF PAKISTAN

(Appellate Jurisdiction)

Present:

Justice Shakeel Ahmad

Justice Aamer Farooq

C.A. 458/2025, C.M.A. 6116/2025, C.A. 459/2025, C.M.A. 6118/2025, C.A. 460/2025, C.M.A. 6120/2025, C.A. 461/2025, C.M.A. 6122/2025, C.A. 462/2025, C.M.A. 6124/2025, C.A. 463/2025, C.M.A. 6126/2025, C.A. 464/2025, C.M.A. 6128/2025, C.A. 465/2025, C.M.A. 6130/2025, C.A. 466/2025, C.M.A. 6132/2025, C.A. 467/2025, C.M.A. 6134/2025, C.A. 468/2025, C.M.A. 6136/2025, C.A. 469/2025, C.M.A. 6138/2025, C.A. 470/2025, C.M.A. 6140/2025, C.A. 471/2025, C.M.A. 6142/2025, C.A. 472/2025, C.M.A. 6144/2025, C.A. 473/2025, C.M.A. 6146/2025, C.A. 474/2025, C.M.A. 6148/2025, C.A. 475/2025, C.M.A. 6150/2025, C.A. 476/2025, C.M.A. 6152/2025, C.A. 477/2025, C.M.A. 6154/2025, C.A. 478/2025, C.M.A. 6156/2025, C.A. 479/2025, C.M.A. 6158/2025, C.A. 480/2025, C.M.A. 6161/2025, C.A. 481/2025, C.M.A. 6163/2025, C.A. 482/2025, C.M.A. 6165/2025, C.A. 483/2025, C.M.A. 6167/2025, C.A. 484/2025, C.M.A. 6169/2025, C.A. 485/2025, C.M.A. 6171/2025, C.A. 486/2025, C.M.A. 6173/2025, C.A. 487/2025, C.M.A. 6175/2025, C.A. 488/2025, C.M.A. 6177/2025, C.A. 489/2025, C.M.A. 6179/2025, C.A. 490/2025, C.M.A. 6181/2025, C.A. 491/2025, C.M.A. 6183/2025, C.A. 492/2025, C.M.A. 6185/2025, C.A. 493/2025, C.M.A. 6187/2025, C.A. 494/2025, C.M.A. 6189/2025, C.A. 495/2025, C.M.A. 6190/2025, C.A. 496/2025, C.M.A. 6191/2025, C.A. 497/2025, C.M.A. 6192/2025, C.A. 498/2025, C.M.A. 6193/2025, C.A. 499/2025, C.M.A. 6194/2025, C.A. 517/2025, C.M.A. 6195/2025, C.A. 550/2025 to C.A. 563/2025 and CA 568 to 570/2025.

(Against the judgment dated 21.05.2025, passed by the Competition Appellate Tribunal, Islamabad, in Appeals No. 13 to 84 of 2022)

Mirpurkhas Sugar Mills Limited	<i>(in C.A. 458/2025 & C.M.A. 6116/2025)</i>
Sindh Abadgar's Sugar Mills Limited	<i>(in C.A. 459/2025 & C.M.A. 6118/2025)</i>
SGM Sugar Mills Limited	<i>(in C.A. 460/2025 & C.M.A. 6120/2025)</i>
Sakrand Sugar Mills Limited	<i>(in C.A. 461/2025 & C.M.A. 6122/2025)</i>
Al-Abbas Sugar Mills Limited	<i>(in C.A. 462/2025 & C.M.A. 6124/2025)</i>
Al Noor Sugar Mills Limited	<i>(in C.A. 463/2025 & C.M.A. 6126/2025)</i>
Army Welfare Sugar Mills Limited	<i>(in C.A. 464/2025 & C.M.A. 6128/2025)</i>
Digri Sugar Mills Limited	<i>(in C.A. 465/2025 & C.M.A. 6130/2025)</i>
Faran Sugar Mills Limited	<i>(in C.A. 466/2025 & C.M.A. 6132/2025)</i>
Habib Sugar Mills Limited	<i>(in C.A. 467/2025 & C.M.A. 6134/2025)</i>

Khairpur Sugar Mills Limited	(in C.A. 468/2025 & C.M.A. 6136/2025)
Matiari Sugar Mills Limited	(in C.A. 469/2025 & C.M.A. 6138/2025)
Ranipur Sugar Mills Limited	(in C.A. 470/2025 & C.M.A. 6140/2025)
Sanghar Sugar Mills Limited	(in C.A. 471/2025 & C.M.A. 6142/2025)
Shahmurad Sugar Mills Limited	(in C.A. 472/2025 & C.M.A. 6144/2025)
New Dadu Sugar Mills Limited	(in C.A. 473/2025 & C.M.A. 6146/2025)
Ansari Sugar Mills Limited	(in C.A. 474/2025 & C.M.A. 6148/2025)
Khoski Sugar Mills Limited	(in C.A. 475/2025 & C.M.A. 6150/2025)
Naudero Sugar Mills Limited	(in C.A. 476/2025 & C.M.A. 6152/2025)
Larr Sugar Mills Limited	(in C.A. 477/2025 & C.M.A. 6154/2025)
Mehran Sugar Mills Limited	(in C.A. 478/2025 & C.M.A. 6156/2025)
Bawany Sugar Mills Limited	(in C.A. 479/2025 & C.M.A. 6158/2025)
JDW Sugar Mills Limited (Unit-1), Lahore	(in C.A. 480/2025 & C.M.A. 6161/2025)
Ashraf Sugar Mills Limited	(in C.A. 481/2025 & C.M.A. 6163/2025)
Etihad Sugar Mills Limited	(in C.A. 482/2025 & C.M.A. 6165/2025)
Pakistan Sugar Mills Association (PSMA)	(in C.A. 483/2025 & C.M.A. 6167/2025)
JDW Sugar Mills Limited (Unit-II), Lahore	(in C.A. 484/2025 & C.M.A. 6169/2025)
JDW Sugar Mills Limited (Unit-III), Lahore	(in C.A. 485/2025 & C.M.A. 6171/2025)
RYK Mills Limited, Lahore	(in C.A. 486/2025 & C.M.A. 6173/2025)
Indus Sugar Mills Limited, Lahore	(in C.A. 487/2025 & C.M.A. 6175/2025)
Sheikhoo Sugar Mills Limited	(in C.A. 488/2025 & C.M.A. 6177/2025)
The Thal Industries Corporation Limited	(in C.A. 489/2025 & C.M.A. 6179/2025)
Noon Sugar Mills Limited	(in C.A. 490/2025 & C.M.A. 6181/2025)
Al Moiz Industries Limited (Unit-I), Lahore	(in C.A. 491/2025 & C.M.A. 6183/2025)
Al Moiz Industries Limited (Unit-II), Lahore	(in C.A. 492/2025 & C.M.A. 6185/2025)
The Thal Industries Corporation Limited (Layyah Sugar Mills)	(in C.A. 493/2025 & C.M.A. 6187/2025)
Baba Farid Sugar Mills Limited	(in C.A. 494/2025 & C.M.A. 6189/2025)
Deharki Sugar Mills Pvt Limited	(in C.A. 495/2025 & C.M.A. 6190/2025)
JK Sugar Mills Pvt Limited	(in C.A. 496/2025 & C.M.A. 6191/2025)
Adam Sugar Mills Limited	(in C.A. 497/2025 & C.M.A. 6192/2025)
Chanar Sugar Mills Limited	(in C.A. 498/2025 & C.M.A. 6193/2025)
Hamza Sugar Mills Limited	(in C.A. 499/2025 & C.M.A. 6194/2025)
Fatima Sugar Mills Limited	(in C.A. 517/2025 & C.M.A. 6195/2025)

Ittefaq Sugar Mills Limited, Lahore *(in C.A.550/2025)*
 through its Director
 Kashmir Sugar Mills Limited, Lahore *(in C.A.551/2025)*
 through its Director
 Tandlianwala Sugar Mills Limited, *(in C.A.552/2025)*
 Lahore
 Jauharabad Sugar Mills Limited *(in C.A.553/2025)*
 M/s S.W. Sugar Mills Limited *(in C.A.554/2025)*
 M/s Hunza Sugar Mills (Pvt.) Limited, *(in C.A.555/2025)*
 Unit-I, Lahore
 M/s Hunza Sugar Mills (Pvt.) Limited, *(in C.A.556/2025)*
 Unit-II, Lahore
 Tariq Corporation Limited (formerly *(in C.A.557/2025)*
 Husein Sugar Mills Limited
 Shakarganj Limited (Unit-I) *(in C.A.558/2025)*
 Shakarganj Limited (Unit-II) *(in C.A.559/2025)*
 Imperial Limited (Formerly Imperial *(in C.A.560/2025)*
 Sugar Limited)
 Abdullah Shah Ghazi Sugar Mills *(in C.A.561/2025)*
 Limited
 Haq Bahu Sugar Mills (Pvt.) Ltd *(in C.A.562/2025)*
 Macca Sugar Mills (Pvt.) Limited *(in C.A.563/2025)*
 Darya Khan Sugar Mills Ltd *(in C.A.568/2025)*
 Pattoki Sugar Mills Limited *(in C.A.569/2025)*
 Shahtaj Sugar Mills Limited *(in C.A.570/2025)*

 ... Appellant(s)/
 Applicants

Versus

Competition Commission of Pakistan *(in all cases)*
 ... Respondent(s)

For the Appellant(s)/ Applicant(s)	: Mr. Abdul Sattar Pirzada, ASC <i>(via VL from Karachi)</i> <i>(In CAs No. 458 to 479/2025)</i> : Mr. Shehzad Ata Elahi, ASC <i>(via VL from Karachi)</i> <i>(In CAs 480 to 494/2025,</i> <i>517/2025 and 554/2025)</i> : Mr. Sikandar Bashir Mohmand, ASC <i>(In CAs No. 495 to 499/2025)</i> : Mr. Ali Sibtain Fazli, Sr.ASC. <i>(In CAs 552 and 556/2025)</i> : Mr. Shehryar Kasuri, ASC <i>(via VL from Lahore)</i> <i>(In CAs No. 553, 557 to</i> <i>563/2025)</i>
For Respondent(s)	: Ms. Asma Hamid, ASC <i>(in</i> <i>all cases)</i> alongwith Hafiz

Naeem (Legal Advisor,
CCP)

Date of Hearing : 18.09.2025

JUDGMENT

SHAKEEL AHMAD J: - In this batch of appeals filed under Section 44 of the Competition Act, 2010 ("**the Act**") appellants have assailed the common judgment dated 21.05.2025 ("**impugned judgment**") passed by the Competition Appellate Tribunal, Islamabad ("**the Tribunal**"), whereby and whereunder the casting vote exercised by the Chairperson under Section 24(5) of the Act, in the event of equality of votes among the members hearing the matter, was set aside. Consequently, the matter was remanded to the Competition Commission of Pakistan ("**the Commission**") with the direction that either the Chairperson or any other member, who was not a signatory to either of the earlier opinions, to hear the appellants and decide these matters preferably within a period of ninety days.

2. The brief facts necessary for the adjudication are that the proceedings against the appellants were heard by an even-numbered bench, i.e., a four-member bench of the Commission, comprising the Chairperson and three members. The Chairperson, along with one member, found the appellants guilty and imposed various penalties through an order dated 06.08.2021. Conversely, the remaining two members set aside the show-cause notice and remanded the matter for a *de novo* inquiry, vide order dated 12.08.2021. Thereafter, the Chairperson, purporting to act under Section 24(5) of the Act, exercised a casting vote by order dated 13.08.2021, with a view to resolve the deadlock. Being aggrieved by the same, the appellants preferred separate appeals before the Tribunal. Upon hearing learned counsel for the parties, the Tribunal, through the impugned judgment dated 21.05.2025, decided the fate of the appeals in the following manner:-

"After hearing the matter at length for the reason to be recorded subsequently, we are of the opinion that Chairperson had no right of casting a vote in quasi judicial proceedings. Consequently, we set aside her opinion dated 13.08.2021 through which the right of casting vote was exercised and remand the matter to

the Commission with the direction that either the Chairperson or any other member who is not signatory to either of the opinions to hear the appellants and to decide these matters preferably within a period of ninety days.”

Dissatisfied with the impugned judgment, the appellants have approached this Court through present petitions, seeking to set aside the impugned judgment.

3. Learned ASCs appearing for the appellants contended that the exercise of a casting vote by the Chairperson in quasi-judicial proceedings is *ultra vires* of the Constitution of the Islamic Republic of Pakistan (“**the Constitution**”) and contrary to the principles of natural justice, due process, and fair trial guaranteed under Article 10-A of the Constitution. It was argued that the proceedings initiated under Section 30 of the Act, once a show cause notice is issued, partake the character of quasi-judicial proceedings, and that the casting vote contemplated under Section 24(5) of the Act is confined to administrative matters, not judicial or quasi-judicial determinations. While conceding that in the event of an equality of votes, the Chairperson is vested with a casting vote under Section 24(5) of the Act, learned counsels urged that such authority is restricted to administrative decisions of the Commission. According to them, its extension to judicial or quasi-judicial proceedings is impermissible. It was further submitted that the appellants’ grievance is confined to the directions contained in the impugned judgment, whereby the Tribunal remanded the matter to the Commission with the direction that either the Chairperson or any other Member, not being a signatory to either of the earlier opinions, should hear the appellants and decide the matters, preferably within a period of ninety days.

4. Conversely, learned counsel appearing on behalf of the respondent-Commission submitted that the impugned judgment did not annul the entire proceedings undertaken by the Commission. Rather, the Tribunal remanded the matter with a direction that either the Chairperson or any other member who was not a signatory to either of the earlier opinions should hear the appellants afresh. She concluded her submissions by contending that, in these circumstances, the impugned judgment is legal, justified, and calls for no interference by this Court.

5. After hearing learned counsel for the parties at length, we are of the considered view that two-fold issues arise for determination before this Court, which are as follows:

Whether Section 24(5) of the Act authorises the Chairperson to exercise a casting vote in quasi-judicial adjudicatory proceedings of the Commission, and whether such exercise offends Article 10-A of the Constitution and the principles of fairness?

6. There is no cavil to the proposition that sub-section (5) of Section 24 of the Act confers upon the Chairperson the right to exercise a casting vote in the event of an equality of votes. However, Article 10-A of the Constitution enshrines the fundamental guarantee of a fair trial and due process in the determination of civil and criminal rights and obligations. The concept of fair trial entails proceedings free from bias and prejudice, ensuring that no party to the *lis* is disadvantaged by partiality. Our jurisprudence has consistently recognised that this right is not merely formal but substantive, requiring that adjudication take place before a forum that is both impartial and competent¹. Implicit in this guarantee is the elimination of bias or prejudice for or against any party, ensuring that proceedings are conducted in an atmosphere of judicial calm and fairness. The principle has been aptly described by W. Willoughby in his *Constitutional Law of the United States*², as follows:

- i. That the person shall have due notice;*
- ii. That he shall be given a reasonable opportunity of defence;*
- iii. That the Tribunal in or before which his rights are adjudicated is so constituted so as to give reasonable assurance of its honesty and impartiality;*
- iv. That it is a Tribunal of competent jurisdiction.*

7. The doctrine of due process of law, as discussed above, is inextricably linked with the principles of natural justice and fair trial. It embodies, *inter alia*, the following requirements as also having been elaborately discussed, most notably by A.S. Misra in his *Law of Bias and Mala Fides*³: (i) every person whose rights are affected must have reasonable notice of the case he has to meet; (ii) he must have

¹ *Suo Moto Case No.4 of 2010 (PLD 2012 SC 553)*

² *Second Student Edition P. 736*

³ *A.S. Misra, Law of Bias and Mala Fides (2nd edn, Eastern Book Company 1978) ch. 2, P. 12.*

reasonable opportunity of being heard in defence; (iii) the authority which is called upon to try issues in judicial and quasi-judicial proceedings must be able to act judicially, that is, impartially, objectively, and without any bias; and (iv) the trial must be held in good faith, without bias and not arbitrarily and unreasonably. The principles of the law of bias have their foundation in the concept of impartiality of justice. This conception is symbolized by the pair of scales with which the idea of justice is associated, and since ancient times, it is regarded as an emblem of justice. Furthermore, this Constitutional guarantee extends not only to the Courts of law, but also to the Tribunals and quasi-judicial *fora*, such as the Commission, when adjudicating complaints and imposing penalties.

8. Justice is the cornerstone of an Islamic society. The Holy Qur'an and the *Sunnah* of the Prophet (SAW) lay the strongest emphasis on impartiality, neutrality, and fairness in adjudication, making it a defining quality of any person entrusted with deciding disputes. The idea of impartiality in the administration of justice is inherent in the moral order of Islam and ancient India. The Holy Qur'an explicitly commands judges to dispense justice without bias, even against one's own self or kin. This is clear from the following Verses of the Holy Quran:

"O David ! Lo We have set thee as a Viceroy in the earth; therefore, Judge aright between mankind, and follow not desire that it beguile thee from the way of Allah."

(38:26)

"And unto thee have We revealed the Scripture with the truth, confirming whatever Scripture was before it, and a watcher over it. So judge between them by that which Allah hath revealed, and follow not their desires away from the truth which hath come unto thee. So judge between them by that which Allah hath revealed, and follow not their desires, but beware of them lest they seduce thee from some part of that which Allah hath revealed unto thee."

(5:48-49)

9. Impartiality constitutes the foremost attribute of a judge. History furnishes an instructive example in the person of Emperor Jehangir as expounded upon by A.S Misra in his book⁴.

⁴ Misra (n 3) P. 9

When confronted with a complaint by a laundress that her husband had been killed by an arrow discharged by the Empress, which, according to the Empress, was aimed at a fleeting antelope, and accidentally struck the unfortunate victim, the justice-loving Emperor declined to accept the plea of accident. Proclaiming that the law demanded, “*a husband for a husband*”, he offered his own life in expiation. Although the widow refrained from exalting such a penalty, the Emperor’s conduct affirms the cardinal principle that justice must be administered without regard to personal attachment or position. Whether the Empress had caused the death accidentally or intentionally is a point of controversy, but Jehangir’s part in the case is attested by history. This instance emphasizes the impartiality of judges and exemplifies the excellence of the idea of pure justice.

10. The Tribunal, in its ruling, categorically held that the Chairperson cannot exercise a casting vote in a quasi-judicial proceeding and accordingly remanded the matter for a fresh hearing. In the present case, the Chairperson had already rendered her opinion against the appellants and hence was no longer competent to invoke a casting vote, making its use invalid in an adjudicatory context. It is to be borne in mind that the Commission performs a dual role, namely: (i) administrative policy functions, and (ii) adjudicatory functions determining civil rights and obligations of undertakings, and the unqualified application of Section 24(5) of the Act blurs this distinction. In adjudicatory proceedings, the principles of natural justice demand that each member’s vote carry equal weight and that no member be permitted to exercise a “double vote”. A casting vote by the Chairperson, who has already participated in the decision, inevitably creates an appearance of bias and undermines the requirement of impartiality. In this context, reference may be made to the judgment⁵ of the Delhi High Court, which while examining Section 22(3) of the Indian Competition Act, 2002, a provision formerly in *pari materia* with our Section 24(5) held that the conferment of a casting vote upon the Chairperson in quasi-judicial proceedings is destructive to the principle of equal weight accorded to each member’s decision, *anathema* to the rule of law, and inconsistent with constitutional guarantees. In the *ibid* judgment of Delhi High Court, Section 22(3) (except the proviso) was

⁵ *Mahindra Electric Mobility Limited & Ors v. CCI & Ors* (2019 DHC 2043-DB)

declared unconstitutional, and thereafter the said words i.e., “*and in the event of equality of votes, the chairperson or in his absence, the Member presiding, shall have second or casting vote*” were omitted through Act No.9 of 2023 w.e.f. 18.05.2023 by the Indian legislature.

11. Article 10-A of the Constitution mandates not only actual fairness but also the appearance of fairness on the record. A decision reached by the Chairperson through the exercise of a casting vote, after an equal division among members, undermines public confidence and denies the affected party a fair trial. The constitutional safeguard embodied in Article 10-A must prevail over the statutory text. Therefore, Section 24(5) of the Act is to be read down as applying only to the Commission’s administrative or internal matters and not to its adjudicatory proceedings. We accordingly hold that the Chairperson has no authority to exercise a casting vote in quasi-judicial proceedings under the Act, as such exercise violates Article 10-A of the Constitution and the principle of fairness, and that the scope of Section 24(5) is confined to administrative and internal decisions of the Commission.

12. We conclude that the impugned judgment dated 21.05.2025, insofar as it rests upon the Chairperson’s casting vote in adjudicatory proceedings, was rightly set aside by the Tribunal as violative of Article 10-A of the Constitution and to that extent warrants no interference. However, the portion of the impugned order directing that either the Chairperson or any other member not signatory to either of the opinions hear the appellants is set aside, and the matter is remanded to the Tribunal to decide the same afresh after affording a full right of audience to the learned counsel for the parties, within ninety days from the date of receipt of this order. These appeals are partly allowed in the above terms. In the circumstances of the case, there shall be no order as to costs.

Judge

Judge

Islamabad
18.09.2025
Zia/* Rameen Shahram LC

APPROVED FOR REPORTING